The 44th Amendment Act of 1978 introduced a new provision to put restraint on the power of Parliament to extend a proclamation of President's Rule beyond one year. Thus, it provided that, beyond one year, the President's Rule can be extended by six months at a time only when the following two conditions are fulfilled:

1. A proclamation of National Emergency should be in operation in the whole of India, or in the whole or any part of the state; and

2. The Election Commission must certify that the general elections to the legislative assembly of the concerned state cannot be held on account of difficulties.

A proclamation of President's Rule may be revoked by the President at any time by a subsequent proclamation. Such a proclamation does not require the parliamentary approval.



Consequences of President's Rule

The President acquires the following extraordinary powers when the President's Rule is imposed in a state:

1. He/she can take up the functions of the state government and powers vested in the governor or any other executive authority in the state.

2. He/she can declare that the powers of the state legislature are to be exercised by the Parliament.

3. He/she can take all other necessary steps including the suspension of the constitutional provisions relating to any body or authority in the state.

Therefore, when the President's Rule is imposed in a state, the President dismisses the state council of ministers headed by the chief minister. The state governor, on behalf of the President, carries on the state administration with the help of the chief secretary of the state or the advisors appointed by the President. This is the reason why a proclamation under Article 356 is popularly known as the imposition of 'President's Rule' in a state. Further, the President either suspends or dissolves the state legislative assembly[8]. The Parliament passes the state legislative bills and the state budget.

When the state legislature is thus suspended or dissolved:

1. The Parliament can delegate the power to make laws for the state to the President or to any other authority specified by him/her in this regard,

2. The Parliament or in case of delegation, the President or any other specified authority can make laws conferring powers and imposing duties on the Centre or its officers and authorities, and

3. The President can authorise, when the Lok Sabha is not in session, expenditure from the state consolidated fund pending its sanction by the Parliament.

A law made by the Parliament or the President or any other specified authority continues to be operative even after the President's Rule. This means that the period for which such a law remains in force is not coterminous with the duration of the proclamation. But it can be repealed or altered or re-enacted by the state legislature.